

Court No. - 37

Case :- WRIT - C No. - 43637 of 2017

Petitioner :- Mohan Lal Kesarwani

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Pramod Kumar Srivastava

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Rajiv Lochan Mehrotra,J.

This petition appears to have been wrongly sent by the office before this Court as a mandamus has been prayed for settling a billing dispute for consumption of electricity.

There is nothing on record to indicate that any consequential recovery proceedings have been initiated. In such a circumstances this writ petition would not fall within the title of Recovery Matters and let the matter be placed before the appropriate Bench tomorrow as fresh.

Order Date :- 18.9.2017

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Chief Justice's Court

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Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Pramod Kumar Srivastava

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Dilip B. Bhosale,Chief Justice

Hon'ble Manoj Kumar Gupta,J.

Heard Mr. P.K. Srivastava, learned counsel for the petitioner and Mr. Mahboob Ahmad, learned counsel for respondent nos. 2, 4 and 5.

Counsel for the petitioner submits that the petitioner may be directed to deposit 50% of the amount demanded vide bills dated 31.8.2017 within a period of two weeks from today. His statement is recorded and accepted. If the petitioner deposits the amount, as aforementioned, and raises a dispute of the electricity bills dated 31.8.2017 under the provisions of Section 6.5 of the Electricity Supply Code, 2005 within a period of two weeks therefrom, the same may be considered and dealt with on merits in accordance with law expeditiously. It is needless to mention that if the petitioner fails to raise dispute, as aforementioned, it will be open to respondents to recover the balance amount in accordance with law.

The petition is, accordingly, disposed of.

Order Date :- 20.9.2017

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(M.K. Gupta, J)

(Dilip B Bhosale, CJ)